



**153rd GENERAL ASSEMBLY
FISCAL NOTE**

BILL:	HOUSE BILL NO. 244
SPONSOR:	Representative K. Williams
DESCRIPTION:	AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO LOCAL SCHOOL TAXES.

Assumptions:

1. This Act becomes effective upon signature of the governor.
2. This Act allows counties to update exemption amounts by county ordinance to reasonably reflect changes in property value and inflation.
3. This Act requires school tax exemption determinations in New Castle County to use the same eligibility criteria and exemption amount that New Castle County used for county taxes as of July 1, 2025.
4. In any school district that issues a new tax warrant permitted under House Bill 242 of the 153rd General Assembly, the county must reissue or adjust 2025-2026 tax bills to apply the expanded school tax exemptions, extend the payment deadline for adjusted bills to October 30, 2025, and refund any overpayments.
5. According to New Castle County data, county tax exemptions for seniors are \$3,207,505,700 greater than the amount of exemptions currently applied to school property taxes. By multiplying the difference within each district by the school rates for each district, this results in a possible reduction of local school revenue of \$11,497,652.60. This includes all New Castle County school districts and both vocational districts with a tax base in New Castle County. The breakdown by school district is shown below.

School District	Revenue Loss by School District
Appoquinimink	\$ 1,029,069.08
Brandywine	\$ 1,978,096.52
Christina	\$ 3,370,920.23
Colonial	\$ 1,589,343.98
Red Clay	\$ 2,800,217.83
Smyrna (NCC Portion)	\$ 38,629.17
New Castle County VoTech	\$ 688,488.11
PolyTech (Smyrna Only)	\$ 2,887.69
Total School Revenue Loss	\$ 11,497,652.60

6. As reassessments occur every five years and were most recently completed no earlier than fiscal year 2025, the same assessed value and school tax rates are assumed through 2029 for all three counties.

Cost:

	Local School Revenue Loss
Fiscal Year 2026:	\$11,497,652.60
Fiscal Year 2027:	\$11,497,652.60
Fiscal Year 2028:	\$11,497,652.60

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Office of the Controller General